

Chairman, West Bengal State Electricity Board & Ors. v. Syed Mukbul Hossain & Ors.

Supreme Court of India · Two-Judge Bench · 8 December 2008 · (2009) 2 SCC 727; AIR ONLINE 2008 SC 50 · Civil Appeal (arising out of SLP (C) No. 6618 of 2007) · **Appeal disposed of (costs set aside; statutory appeal to be decided on merits)**

HEADNOTE

Where, after a provisional assessment for theft/meter-tampering, supply is disconnected under the West Bengal Electricity Supply Code Regulation 5.2 and a final assessment is made under Section 126, the consumer's remedy is the statutory appeal under Section 127 against the final order, to be decided on merits by the appellate authority — including any objection as to the maintainability/limitation of that appeal. The Supreme Court set aside the High Court's imposition of costs and directed the appeal to be decided in accordance with law without being influenced by the observations below, expressing no opinion on merits.

HOLDING-UNITS

HOLDING-UNIT · WB-2004::5.2

Disconnection procedure and the statutory route of objection/appeal under ss.126-127

HOLDING

Disconnection of supply on a theft allegation must follow the procedure of Regulation 5.2; the consumer's remedies are to object under Section 126(3) before the final assessment and to appeal the final order under Section 127. As the final assessment had already been made, the Court relegated the parties to the statutory appeal, to be decided on merits (including the maintainability/limitation objection), setting aside the costs and interim directions of the High Court and expressing no opinion on merits. ¶ 2-6

FLAG Multi-state: construes the West Bengal Supply Code (2004), not the U.P. 2005 Code. The Supreme Court expressly decided nothing on the merits.

PRINCIPLE TAGS

relegate-to-statutory-remedy Where the statutory appeal under Section 127 against a final assessment is available and has been invoked, the parties are relegated to it (with maintainability/limitation left to the appellate authority) rather than to writ/appellate interference on merits. ¶ 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS AND MAINTAINABILITY OF THE STATUTORY APPEAL

The Court expressly expressed no opinion on merits; the maintainability of the appeal on the ground of alleged delay was left to the appellate authority. ¶ 5